

not examine critically the legislative history of the Civil Rights Acts.²⁸ The only reference to this history in the plurality opinion, insofar as it bears on the interpretation of the clause "under color of . . . law," is contained in a pair of sentences discounting two statements by Senators Trumbull and Sherman regarding the Civil Rights Acts of 1866 and 1870, cited by the minority.²⁹ The bulk of the plurality opinion's treatment of the issue consists of the argument that "under color" had been construed in *Classic* and that the construction there put on the words should not be abandoned or revised. 325 U. S., at 109-113. The case of *Williams v. United States*, 341 U. S. 97, reaffirmed *Screws* and applied it to circumstances of third-degree brutality practiced by a private detective who held a special police officer's card and was accompanied by a regular policeman.³⁰

²⁸ The brief for petitioners *Screws et al.* contains no citation to legislative history. The brief for the United States, after several citations intended to demonstrate that the purpose of the Civil Rights Acts was to enforce the Fourteenth Amendment and to protect the rights which it secures (these citations, employed to the same purpose, may be found in the plurality opinion, 325 U. S., at 98-99), sets forth only one other bit of legislative material: a statement made in debate by Senator Davis of Kentucky, an opponent of the Act of 1866, to the effect that the Act would repeal the penal laws of all the States. See Cong. Globe, 39th Cong., 1st Sess. 598.

²⁹ See 325 U. S., at 111 (plurality); *id.*, at 142-144 (dissent). These two statements are set forth in text at notes 38 and 39, *infra*. The plurality opinion also contains references to other aspects of the legislative history in another context, *id.*, at 98-100; see note 28, *supra*. In his separate opinion, Mr. Justice Rutledge twice adverts to legislative materials, once with regard to matters not relevant here, *id.*, at 120, n. 13, 14, and once, pertinently, with particular reference to the position of opponents of the 1866 Act that the legislation would invade the province of the States (setting forth Senator Davis' statement, see note 28, *supra*), *id.*, at 132, n. 33. Mr. Justice Murphy, also writing separately, does not discuss the "under color" issue.

³⁰ Neither the Court's opinion nor the briefs in *Williams* contain any citation to the legislative history of the Civil Rights Acts. It is true